AGREEMENT AND PLAN OF MERGER — HOSTILE / UNAMBIGUOUS (STRESS FIXTURE 02)

This Agreement and Plan of Merger (the "Agreement") is made between BuyerCo Inc. ("Buyer") and TargetCo Inc. ("Target").

1. THE MERGER

Target shall merge with and into Buyer pursuant to Section 251 of the Delaware General Corporation Law, with Buyer continuing as the surviving corporation. The Plan of Merger is attached as Exhibit A. At the Effective Time, all liabilities of Target shall vest in the surviving corporation by operation of law. (Structure is unambiguous: this is a statutory merger.)

2. PURCHASE PRICE

Total consideration shall be $50,000,000: $48,000,000 in cash at Closing and up to $2,000,000 as an Earnout. The performance metrics governing the Earnout shall be determined by Buyer in its sole and absolute discretion following Closing. Buyer shall be under no obligation to operate the business in any manner that would result in achievement of the Earnout, and no covenant of good faith shall apply to the Earnout.

3. REPRESENTATIONS AND WARRANTIES

Target makes limited representations, each qualified "to Seller's knowledge," where "knowledge" is undefined and limited to the actual knowledge of a single individual. Buyer agrees that it may not bring any claim for breach of any representation or warranty of which Buyer had knowledge prior to Closing (express anti-sandbagging waiver).

4. DUE DILIGENCE

Buyer accepts the business "as is, where is," waives reliance on any representation not expressly set forth herein, and confirms that no further information is required from Target.

5. INDEMNIFICATION

Seller shall indemnify Buyer for breaches of representations and warranties, subject to the following: an aggregate cap of 0.5% of the Purchase Price (applicable to all claims, including fundamental and tax representations); a tipping basket of 3% of the Purchase Price (no recovery until aggregate Losses exceed the basket, after which recovery is limited to amounts above it); and a survival period of thirty (30) days following Closing. No escrow or holdback secures these obligations.

6. TERMINATION

Seller may terminate this Agreement at any time prior to Closing for convenience upon five (5) days' notice. Buyer may terminate only upon a final, non-appealable judicial determination of Seller's fraud.

7. WORKING CAPITAL

[No working capital adjustment provision is included.]

8. MATERIAL ADVERSE EFFECT

[No Material Adverse Effect definition or condition is included.]

9. EMPLOYEES

All employees shall be retained for thirty (30) days post-Closing.

10. GOVERNING LAW

This Agreement is governed by the laws of the State of Delaware. Disputes shall be resolved by arbitration administered in Wilmington, Delaware under the Commercial Arbitration Rules of the AAA.

11. ENTIRE AGREEMENT

This Agreement, together with its Exhibits and Schedules, constitutes the entire agreement of the parties and supersedes all prior understandings relating to its subject matter.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

Buyer Co: _____ Target Co: _____